NEW YORK STATE
PUBLIC SERVICE COMMISSION

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service. **Case 25-E-0072**

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service. **Case 25-G-0073**

TESTIMONY OF MICHAEL STEIFMAN, ESQ. FOR UTILISAVE, LLC IN OPPOSITION TO APPROVAL OF THE JOINT PROPOSAL

November 26, 2025

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INTRODUCTION

Q. Please state your name, business address, and identify for whom you are presenting testimony in these proceedings.

Michael Steifman 2 Eastway Drive Southampton NY 11968. I represent UtiliSave as its CEO and in my capacity as an agent for the utility bill auditing customers being served by Con Edison that UtiliSave represents.

Q. Please describe UtiliSave and your relationship to the organization.

I am the Founder and CEO of UtiliSave. UtiliSave is a utility auditing company. UtiliSave has used its proprietary systems and specialized knowledge to identify utility overcharges for its clients.

Q. What is your educational background, your professional qualifications, and employment history?

Employment History:

Steifman, LLP, New York, NY – admitted in New York, Texas and Massachusetts
Managing Partner, September 2020 -Present

UtiliSave, LLC, New York, NY
Founder, Managing Member and CEO, November 1991 - Present

- Manage 30+ person firm to achieve annual multi-million dollars in revenue.
- Provision utility bill auditing services resulting in energy and cost reductions for clients.
- Secured over $700 million in savings for large commercial, industrial and institutional property owners of 16,000 buildings nationwide over 35 years.

- Well practiced in legal research, issue spotting and legal writing.
- Successfully engaged in all phases of rate case litigation with various utility companies resulting in awards of millions of dollars to clients.

Starrett Housing Corporation, New York, NY
Vice President, June 1986 - April 1992

- Implemented and monitored all phases of real estate development projects.
- Responsible for site negotiation and acquisition, design, financing, construction management, marketing and leasing of projects.
- Youngest corporate Vice President in the company's 100 year history.

Education

New York Law School, New York, NY
LLM Tax candidate, May 2028

Juris Doctor, Graduated December 2019, Cum Laude
Honors: Dean's List, High Honors

The Wharton School, University of Pennsylvania, Philadelphia, PA
Bachelor of Science in Economics, 1986

Q. Have you previously testified before the New York State Public Service Commission?

I have not testified before the Public Service Commission in a rate case, but I have presented cases in the Informal Hearing setting on behalf of clients of UtiliSave.

Q. What is the purpose of your testimony?

To advocate for the PSC to mandate that Con Ed be required to provide all the data and formulas related to each charge and component of a customer's bill, such that there is full transparency as to the method of formulation and calculation with provisioning of all bill inputs which are utilized to derive every billing component.

Q. What are the major findings of your testimony in these proceedings?

My testimony examines and provides evidence that the Joint Proposal fails to take into account that Con Edison's billing strategy and policies are not as transparent as they should be in order to protect ratepayers' interests. The Joint Proposal only provides for a limited expansion in billing transparency, that being related to taxation (see Joint Proposal at 93). Based on my 35-years of experience in the industry, and my interactions with multiple utilities, much more in the way of informational transparency is required to fulfill the needs of the public in this critical area. My testimony will also highlight examples where the lack of data transparency inhibits the ability of a customer to determine the accuracy of the bills provided to them by Con Edison.

Q. Is greater information transparency and greater transparency in the billing process in the public interest?

Yes.

Q. Why is it important that the information you are requesting be made available?

There are a number of reasons:

A. There should be a sustained practice of transparency. If a charge is being assessed, then all the billing components should be made available as a matter of course. This approach fosters a relationship of trust between the utility and a customer,

B. Given all the variables that go into a correct bill, it is very possible for there to be a mistake on how an input is allocated. Once example is in the calculation of the BTU heating factor, there are 5 zones that serve all customers, the billing does not disclose which zone the customer has been placed on, how can the customer check if he is in the correct zone?

C. Customers should have the ability to confirm each component of their bill and all the related inputs should be provided so that this is possible. If there is a charge the support/backup for this charge should be available. Why should anyone be required to pay for charges that are not verifiable? There is really no aspect of commerce where it would be acceptable to be presented with a bill by a vendor, and if you as the customer wanted to verify the accuracy of any component of the bill, would not be able to do so, yet you would still be expected to pay the bill. Why should utility service not operate on the same concept? Yet today the requirement for such a level of

information and transparency is not an obligation of the utilities. This needs to change.

Q. Why isn't the current treatment by Con Edison sufficient?

Because even when asked, Con Edison does not provide the reasonable information requested. I detail specific excerpts below from Con Ed dialogues that illustrate this point.

Q. Does the Joint Proposal adequately consider the issue of bill transparency in order to provide ratepayers with sufficient information to understand all the charges on their bill and to permit ratepayers, should they wish to, to confirm the accuracy of the charges assessed by Con Edison for utility service?

No.

Q. **Are there specific examples where greater informational transparency would enhance a ratepayer's ability to confirm the charges assessed by Con Edison?**

Yes. The examples I will give are not all inclusive, but just illustrative.

Gas Cost Factor: The Company's Gas Cost Factor is made up of the average variable cost and the average fixed cost of gas both of which have multiple sub-components. These components are set out in Con Edison's gas tariff at Leaves 155.1, 156, 157, 157.1, 158, 159, 160, 161. The values, data and formulas used to derive these sub-components are not disclosed to

ratepayers. When UtiliSave filed an Information Request seeking information on Con Edison's policy regarding disclosure of these sub-components, Con Edison replied that it did not propose to change its policy. Con Edison replied that such information was confidential, and without proof, alleged that disclosure of such data " could impair the Company's position in any future negotiations with gas suppliers and service providers with respect to hedge-based gas transactions."

Market Supply Charge: The price of the Market Supply Charge (MSC) for non-Rider M customers is based on Con Edison's forecast of NYISO market energy prices plus a defined 'Hedging Impact.' The cost per kWh is reconciled monthly via the Adjustment Factors – MSC, with true-ups reflected in the following month's billing statements. While the tariff specifies each input to the MSC, Con Edison does not publish granular forecast or real-time hedging data, nor provide the raw input for analysis by customers or their representatives. Additionally, the charge components and adjustment factors are updated and filed publicly each month, but full calculation workpapers are not published, and so the final information cannot be independently calculated and verified by the customer. When UtiliSave filed an Information Request seeking if Con Edison was entertaining a policy change, Con Edison again replied, without evidence,

that the confidentiality of this information was required so as not to "impair the Company's position in future negotiations with counterparties."

BTU Factor**:** The tariff permits Con Ed to charge for gas based on the BTU content of the gas, as opposed to the volume of gas, such that for the same volume of gas, one ccf of gas with a higher BTU content, will cost more than a ccf of gas with a lower BTU content. The following information is not made available to the ratepaying public by Con Edison:

1. The method, process or other calculation the Con Edison uses to calculate the Gas Therm for each city gate, as taken hourly throughout the year on each day.
2. The method, process or other calculation the Company uses to calculate the quantity of gas being passed through each city gate as taken hourly throughout the year on each day.
3. The method, process or other calculation the Company uses to calculate the quantity of gas that is being taken from each city gate into each thermal zone as taken hourly throughout the year on each day.

In the Information Request, UtiliSave requested information on how this data could be accessed. Con Edison replied for each "Current technology systems do not have the capability to publish this data as described to customers. There are currently no projects in the current technology roadmap that would provide this functionality."

What is being requested is the raw data. This can be presented in Excel spreadsheets, nothing fancier is required. A data dump in excel can certainly be made available.

Q. Is the information detailed in the example above important for a ratepayer to access?

Yes.

Q. What is the importance of this information?

Access to this information would permit an interested ratepayer to evaluate the accuracy of the charges Con Edison assessed for utility service.

Q. Do you believe that it is in the public interest if access to this information, or protocols established to make this information accessible were contained in the Joint Proposal and made part of the Joint Proposal?

Yes. There is proposed legislation currently pending before the New York State legislature that supports the critical need for utility transparency. S8530**,** entitled **"**The Utility Transparency And Fair Billing Protection Act**"** seeks to prevent consumers from being overcharged due to misclassified utility rates by mandating proactive account reviews, automatic adjustments, and ensuring clear communication between utilities and customers.

S8128 entitled the "Ratepayer Transparency Act" which requires bills utilized by public and private gas corporations, electric corporations and gas and electric corporations in levying charges for service to include separate categories for certain charges.

There is also legislation related to utility transparency that has been recently signed by the Governor and that is now in effect:

S9188 entitled "AN ACT to amend the public service law, in relation to information required to be published prior to a major rate change by a public gas or electric utility" became effective on November 24, 2025. This Act requires the public service commission to publish certain information prior to a major rate change by a public gas or electric utility including an explanation of why the rate change is requested and a summary of how the proposed revenue will be spent. The bill, now law, specifically requires the Public Service Commission to "within ten days of the commencement of any matter involving a major change in a rate for electric or gas service, publish, in a readily accessible location on the department's website, a summary in plain language, not to exceed one page or five hundred words…" containing information related to the rate change proceeding so that ratepayers can evaluate the potential effect on their utility costs, among others.

S6710 entitled "AN ACT to amend the public service law, in relation to false material statements related to a public utility" amends the Public Service Law to permit the assessment of a fine for a false statement and became effective on September 25, 2024:

> …any public utility company or corporation, and the officers, agents or employees thereof that knowingly makes a false material statement, representation or certification to the commission in any rate proceeding shall forfeit to the state of New York a sum not to exceed two hundred fifty thousand dollars. Each false material statement, representation or certification shall constitute a separate and distinct offense for purposes of this section.

Q. Do you support Con Edison's proposal related to billing transparency?

Not as proposed.

Q. What do you recommend instead?

I recommend that DPS consider requiring Con Edison to specifically list and detail individually each and every component of all charges assessed to a ratepayer for utility service, including commodity, delivery, tax and every component of the bill, as I have illustrated in my testimony above.

CONCLUSION

Q. Does this conclude your testimony?

Yes.